

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X Index No.:

MARYELLEN DENNIS,

SUMMONS

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT OFFICER ACUÑA, OFFICER BHALLI,
and SERGEANT LEUNG OF THE 107th PRECINCT,
Individually and in their official capacities,

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 15, 2017

Yours etc.

_____/s/_____
Christopher H. Fitzgerald
Attorneys for Plaintiff
MARYELLEN DENNIS
233 Broadway, Suite 2348
New York, NY 10279
(212) 226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

POLICE OFFICER ACUÑA
107th Precinct, New York City Police Department
7101 Parsons Boulevard
Flushing, NY 11365

POLICE OFFICER BHALLI
107th Precinct, New York City Police Department
7101 Parsons Boulevard
Flushing, NY 11365

SERGEANT LEUNG
107th Precinct, New York City Police Department
7101 Parsons Boulevard
Flushing, NY 11365

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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MARYELLEN DENNIS,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT OFFICER ACUÑA, OFFICER BHALLI, and
SERGEANT LEUNG OF THE 107th PRECINCT, Individually
and in their official capacities,

Defendants.

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Index No.:

VERIFIED COMPLAINT

Plaintiff, by her attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on August 17, 2016, and at all times herein mentioned, Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That on November 15, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof, was duly served on the Plaintiff's behalf on **THE CITY OF NEW YORK**, and that, thereafter, said Defendants refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from this incident.

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Officer Acuña, Officer Bhalli, and Sergeant Leung .

5. That on August 17, 2016, the Plaintiff MARYELLEN DENNIS had not committed any crime.

6. That at approximately 12:00 pm on August 17, 2016 plaintiff MARYELLEN DENNIS was arrested and placed in handcuffs in front of the premises of 73-16 199th Street, Flushing, New York, in the County of Queens by Officer Acuña, Officer Bhalli, and Sergeant Leung of the 107th Precinct of the New York City Police Department.

7. On the date and time in question, plaintiff was lawfully outside the premises of 73-16 199th Street in Flushing Queens, where she had previously resided.

8. Plaintiff had been issued an Order of Protection against her to stay away from the premises, but with the exception that on 8/17/16 she could enter the premises with a police escort to remove her belongings.

9. Claimant had arranged with Police officers of the 107th Precinct to meet her at the premises.

10. Officer Acuna and Officer Bhalli arrived in an RMP.

11. Shortly thereafter, Sergeant Leung from the 107th Precinct arrived at the scene and ordered claimant's arrest, allegedly for violating the Order of Protection.

12. Plaintiff was then taken to the 107th Precinct.

13. Claimant was placed in handcuffs which were tightened to the point of inflicting severe pain to the wrist and forearm.

14. Three different times, claimant asked that the handcuffs be loosened, but was ignored.
15. Claimant was taken to the 107th Precinct and detained for several hours. A female detective acknowledged to her that a mistake had been made and released her.
16. Officer Acuña thereafter said, in some and substance, "I'm sorry."
17. That none of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
18. No acts on the part of the Plaintiff MARYELLEN DENNIS, contributed to the occurrence alleged herein in any manner whatsoever.
19. As a result of the intentional, reckless and negligent acts of the defendants, plaintiff suffered loss of liberty; severe anxiety, humiliation, and embarrassment; damage to personal reputation; apprehension, fear and distrust of the police; physical, emotional and psychological trauma; and violations of rights under the U.S. and New York Constitutions, and applicable statutory and case law.
20. That by reason of the foregoing, Plaintiff MARYELLEN DENNIS has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. §1983

21. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

22. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK CITY POLICE DEPARTMENT and CITY OF NEW YORK.
23. As a result of the aforesaid conduct by defendants ACUÑA, BHALLI and LEUNG, plaintiff was subjected to illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.
24. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and her standing within her community.
25. As a result of defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

SECOND CLAIM FOR RELIEF:

FALSE ARREST AND FALSE IMPRISONMENT UNDER STATE LAW

26. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
27. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility, supervision, and authority of the NEW YORK CITY POLICE DEPARTMENT and its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.

28. At the aforementioned times and locations, plaintiff was detained and held under the imprisonment and control of the defendants ACUÑA, BHALLI and LEUNG under false pretenses.
29. At the aforementioned times and locations, due to the negligence of the defendants, their servants, agents, employees, licensees, independent contractors and/or police officers while in the course and scope of their employment with THE CITY OF NEW YORK, and acting under authority of the NEW YORK CITY POLICE DEPARTMENT, falsely arrested and imprisoned the plaintiff without warrant, authority of law or probable cause therefore.
30. That the acts and conduct on the part of the individual defendants constituting the false arrest and false imprisonment consisted in part of the following: unlawfully and intentionally detaining and confining plaintiff against her will and without her consent; unlawfully and intentionally detaining and confining plaintiff without privilege, probable cause or valid legal process; unlawfully detaining and confining plaintiff through the unlawful arrest of plaintiff; unlawfully detaining and confining plaintiff; unlawfully arresting plaintiff and placing her in handcuffs without reasonable cause therefore, and committing such other acts resulting in the unlawful arrest and imprisonment of plaintiff.
31. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
32. That plaintiff was conscious of the confinement.
33. That as a direct, sole and proximate result of the false arrest, imprisonment, and excessive force, plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace,

injury to personal reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.

34. By the actions described above, the individual and municipal defendants caused plaintiff to be falsely arrested and/or falsely imprisoned plaintiff without probable cause, without reasonable suspicion, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated her statutory and common law rights as guaranteed by the law of the Constitution of the State of New York.

35. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

THIRD CLAIM FOR RELIEF:
NEGLIGENCE

36. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. Defendants negligently caused emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

38. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety,

fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION and TRAINING of ACUÑA, BHALLI and LEUNG

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

41. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and his standing within his community.

FIFTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY UNDER MONELL ARISING FROM UNCONSTITUTIONAL
POLICIES AND CUSTOMS UNDER 42 U.S.C. §1983

42. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

43. Defendants arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.

44. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the NEW YORK POLICE DEPARTMENT, all under the supervision of officers of said department.

46. As a result of the aforementioned conduct of the defendant CITY OF NEW YORK, and the individual defendants, plaintiff's constitutional rights were violated.

47. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer psychological and emotional injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to her reputation and her standing within her community.

48. As a result of the defendants' impermissible conduct, plaintiff demands judgment against defendants in a sum of money to be determined at trial.

**SIXTH CAUSE OF ACTION: BATTERY UNDER NEW YORK STATE LAW and
EXCESSIVE FORCE UNDER 42 U.S.C. §1983**

49. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

50. On August 17, 2017, Defendants ACUÑA, BHALLI, and LEUNG intentionally made physical contact with plaintiff.
51. This physical contact was violent, offensive, and without plaintiff's consent.
52. This contact was without provocation.
53. This violent physical contact caused severe physical and psychological injuries to plaintiff.
54. Defendants ACUÑA, BHALLI, and LEUNG acted voluntarily and intentionally, and with the purpose of physically harming the plaintiff.
55. Defendants ACUÑA, BHALLI, and LEUNG acted with the intent to cause plaintiff physical harm, and to harass, annoy or alarm plaintiff.
56. Defendant the CITY OF NEW YORK is vicariously liable for the actions of Defendants ACUÑA, BHALLI, and LEUNG as these individual defendants were acting in furtherance of NYPD business and within the scope of NYPD authority.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
November 15, 2017

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorneys for Plaintiff(s)

MARYELLEN DENNIS

233 Broadway, Suite 2348

New York, NY 10013

212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **MARYELLEN DENNIS**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
November 15, 2017

/s/

CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff